



**THE POLICE COMMISSIONER
CITY OF NEW YORK**

**MEMORANDUM IN SUPPORT OF NYPD'S DEVIATION FROM
THE DISCIPLINARY SYSTEM PENALTY GUIDELINES**

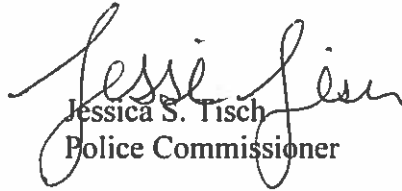
Re: Disciplinary Case No. 2022-25744 / PODS Case No. C-031928 regarding Police Officer Michael Visintin

Date: November 19, 2025

This disciplinary matter was investigated by the Civilian Complaint Review Board ("CCRB") which involved allegations that Police Officer Visintin interfered with an individual's use of a recording device and failed to provide his business card to individuals. CCRB has determined that a downward deviation from the Disciplinary System Penalty Guidelines is warranted.

I concur with the downward deviation for the reasons articulated by CCRB in the attached correspondence.

Therefore, the Charges and Specifications in this matter will be dismissed and Police Officer Visintin will receive Training, as negotiated by CCRB.


Jessica S. Tisch
Police Commissioner



ERIC L. ADAMS
MAYOR

CIVILIAN COMPLAINT REVIEW BOARD
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Dr. MOHAMMAD KHALID
INTERIM CHAIR

February 26, 2025

The Honorable Jessica Trisch
Police Commissioner
New York City Police Department One Police Plaza
New York, NY 10038
VIA EMAIL

Re: *CCRB v. PO Michael Visintin (CCRB Case no. 202008000, DADs no. 2022-25744, Tax no. 953536)*

Commissioner Tisch:

A negotiated settlement of a dismissal of the charge along with Department Imposed Training was agreed upon and signed by all the parties on January 17, 2025. Assistant Deputy Commissioner-Trials, Anne Stone endorsed the negotiated settlement on January 30, 2025. This is a downward deviation from the NYPD's Disciplinary Matrix. CCRB offered this disposition for the following reasons:

1. PO Visintin agreed to take responsibility for his misconduct.
2. While serving at PSA 7/807, PO Visintin received recognition for Excellent Police Duty six times and Meritorious Police Duty twenty-one.
3. PO Visintin has also been a member of service for thirteen years.
4. PO Visintin's Commanding Officers rates PO Visintin's overall performance well above average.
5. The duration of the encounter was brief with limited impact upon the civilians involved
6. CCRB believes there is great potential for training to correct/rehabilitate the behavior.

Respectfully submitted,

Andre D. Applewhite
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Chief Prosecutor
NYC Civilian Complaint Review Board

Cc: John Tynan, Esq.